

8TH SCH.
—*cont.*

Session and Chapter.	Short Title.	Extent of Repeal.
10 & 11 Geo. 5. c. 17.	The Increase of Rent and Mortgage Interest (Restrictions) Act, 1920.	Subsection (1) of section six- teen.
13 & 14 Geo. 5. c. 39.	The Agricultural Rates Act, 1923.	In subsection (2) of section six the words from "and section nine" to the end of the subsection, and the substituted definition of rateable value in Part II of the Schedule.

CHAPTER 91.

An Act to amend Part I. of the Mines (Working Facilities and Support) Act, 1923, with respect to the payment of money into Court.

[22nd December 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment
of Part I. of
13 & 14
Geo. 5. c. 20
as to the
payment of
money into
Court.

1.—(1) Where under Part I. of the Mines (Working Facilities and Support) Act, 1923 (hereinafter referred to as the principal Act), the Railway and Canal Commission have determined that a right should be granted subject to the payment of compensation or consideration, the Commission may in any case where they think fit—

- (a) where the amount of the compensation or consideration has been determined by them, order the payment into Court of the whole or any part thereof ;

- (b) pending the determination of the amount of the compensation or consideration, order the payment into Court of such sum on account thereof as the Commission think fit.

(2) Money required to be paid into Court under the principal Act or this Act shall, subject to rules made under Part VI. of the Supreme Court of Judicature (Consolidation) Act, 1925, be paid into the Supreme Court, and shall be subject to the Acts, rules and orders relating to funds in the Supreme Court, except that it may, subject to rules made under the said Part VI., be paid out on the order of the Railway and Canal Commission: 15 & 16
Geo. 5. c. 49.

Provided that the Commission shall not make an order for payment out of money in any case where it appears to them that the question of title involved is one which would more properly be dealt with by the Supreme Court.

(3) In the application of this Act to Scotland the Court of Session shall be substituted for the Supreme Court, Act of Sederunt shall be substituted for rules made under Part VI. of the Supreme Court of Judicature (Consolidation) Act, 1925, and references to payment into court shall be construed as references to consignment.

2. This Act may be cited as the Mines (Working Facilities and Support) Act, 1925, and the principal Act and this Act may be cited together as the Mines (Working Facilities and Support) Acts, 1923 and 1925. Short title.

